

		parties. The Court notes the Clerk provided notice to all parties of the advanced hearing date. Subject to any objections regarding service, Great Scott's unopposed motion is granted. Great Scott submitted a copy of their proposed cross-complaint against a current nonparty, Briosia Owners' Association. (Cayaba Decl., Exhibit A.) Great Scott's claims in the proposed cross-complaint arise out of the same transaction, occurrence, or series of transactions or occurrences as the causes of action brought against Defendants. (Code Civ. Proc., § 428.10, (b); <i>Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38; Complaint; Cayaba Decl., Exhibit A.) Great Scott's seeks indemnity and contribution against Briosia Owners' Association, contending Briosia had a duty to notify the residents of the tree-trimming activity. Great Scott showed it acted in good faith. Great Scott was unaware of Briosia's potential liability at the time Great Scott filed an answer and only discovered the potential liability during recent discovery. (Cayaba Decl., ¶¶ 5-11 and 13, Exhibits B, C, D, E, and F.) Permitting leave to file the cross-complaint furthers the interests of justice, promotes judicial economy, and permits all claims to be adjudicated on the merits at the same time. There is no opposition to this motion. There is no showing of any prejudice. Great Scott's unopposed motion is granted. Great Scott shall electronically file and serve the proposed cross-complaint attached as Exhibit A to Attorney Cayaba's Declaration on all parties who have appeared within 10 days. Great Scott shall give notice.
7	Lomeli de Facio vs. Sodexo, Inc. 2020-01162342	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Answers to Special Interrogatories 4. Motion to Compel Production 5. Motion to Compel Production 6. Motion to Compel Production Plaintiff Felixitas Lomeli De Facio's motions to compel Defendant Sodexo, Inc. to serve responses to her special interrogatories, sets 2 and 3, and requests for production of documents, sets 2 and 3, are continued to May 19, 2025 at 1:30 pm in Dept. C13. Plaintiff Felixitas Lomeli De Facio's motions to compel Defendant Anaheim Regional Medical Center to serve responses to her special

		interrogatories, set 2, and requests for production of documents, set 2, are also continued to May 19, 2025 at 1:30 pm in Dept. C13. Plaintiff's proofs of service are defective. The motions were e-served, but the sender's email address was not included per Code Civ. Proc., § 1013b(b)(1), which provides that proof of electronic service shall include "[t]he electronic service address and the residence of business address of the person making the electronic service." No oppositions have been served. Thus, the Court is unable to verify that Defendants received notice of Plaintiff's motion. In addition, the Court notes that Defendant Sodexo, Inc. has a pending motion for relief from waiver of objections related to this same discovery set for May 19, 2025. The interests of judicial economy will best be served if all motions are heard on the same day. Plaintiff is ordered to file and serve proofs of service that comply with Code Civ. Proc., § 1013b(b)(1) for all motions, as well as give notice of this ruling, and file proof of service of same no later than five court days prior to the continue hearing date.
8	Phillips vs. Deis 2024-01373420	Motion for Determination of Good Faith Settlement On cross-defendant Harbor Ridge Association's motion for good faith settlement determination, the court notes that Cross-Defendant's proof of service does not comply with Code Civ. Proc. §1013b(b)(3) as it does not show the email address from which email service was made. [ROA #133.] Subject to Cross-Defendant filing a corrected proof of service by the time of the hearing, the court is prepared to grant the motion. Otherwise, the hearing will be continued to 6-23-2025 at 1:30 p.m.. Good Faith Settlement Law Section 877.6 applies to a settlement between a plaintiff and an alleged tortfeasor. Cal. Code Civ. Proc. § 877.6(a)(1). Section 877.6 allows a settling defendant to obtain a determination that his settlement is in good faith, and thus to bar action for contribution or indemnity by the remaining tortfeasors. Cal. Code Civ. Proc. § 877.6(c). The word alleged means the defendant need not be found liable; the plaintiff's allegations are sufficient. <i>Hartford Acc. & Indem. Co. v. Superior Court</i> (1995) 37 Cal. App. 4th 1174, 1179. A written settlement agreement need not be executed and presented with the motion for good faith settlement determination so long as the